

DISTRICT COURT, SAN MIGUEL COUNTY, STATE
OF COLORADO

305 W. Colorado Ave.
Telluride, Colorado 81435

Plaintiff,

TSG SKI AND GOLF, LLC, a Colorado Limited
Liability Corporation,

v.

Defendants,

JULIE MEEHAN FEE, an individual;
MARTINIQUE PROHASKA, an individual; and
PAUL WISOR, an individual.

Attorney for Defendant Julie Meehan Fee

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Div.: 5

**REPLY IN SUPPORT OF MOTION TO STRIKE ¶¶ 41 THROUGH 52 AND
TRANSCRIPT PORTION OF EXHIBIT 2 OF FIRST AMENDED COMPLAINT
PURSUANT TO C.R.C.P. 12(f) FROM DEFENDANT JULIE MEEHAN FEE**

Defendant Julie Meehan Fee, by and through her undersigned counsel, respectfully submits
this Reply in Support of Motion to Strike ¶¶ 41 through 52 and Transcript Portion of Exhibit 2 of
First Amended Complaint Pursuant to C.R.C.P. 12(f), as follows:

ARGUMENT

I. Plaintiff invites the Court to apply an inapplicable standard, which the Court should decline.

Preliminarily, Plaintiff's Response in Opposition to Julie Meehan Fee's Motion to Strike ("Response") attempts to convolute Ms. Fee's Motion to Strike ¶¶ 41 through 52 and Transcript Portion of Exhibit 2 of First Amended Complaint Pursuant to C.R.C.P. 12(f) ("Motion") as a motion concerning the admission of evidence. This approach is unwarranted and should be rejected. C.R.C.P. 12 (f) exists precisely to remove allegations from pleadings that are improper on their face, including allegations that are "redundant, immaterial, impertinent, or scandalous." *See id.* The Motion does not ask the Court to rule on the admissibility of evidence. Instead, the Motion seeks to prevent Plaintiff from using the First Amended Complaint itself as a vehicle to inject unnecessary, legally improper, and prejudicial allegations.

II. Basis exists here to strike redundant allegations.

Plaintiff attempts to overcome redundancy by contending Paragraphs 41 through 52 and the transcript contained within Exhibit 2 of the First Amended Complaint provide necessary factual specificity showing how Defendants allegedly committed tortious interference and civil conspiracy. [Response at 4]. This argument fails. Plaintiff's overarching theory of liability against Defendants is Defendants acted wrongfully by prolonging the ski patrol strike occurring from December 27, 2025, through January 7, 2026. *See* Motion at 3; *see also*, First Amended Complaint at ¶ 29. Plaintiff does not refute this theory of liability in its Response or in its Combined Response to Defendants' Motions to Dismiss. The challenged allegations and exhibit add no new factual theory, claim element theory, or damages theory to Plaintiff's overarching theory of the case.

Rather, the challenged allegations and exhibit are cumulative characterizations¹ of the same alleged conduct pleaded elsewhere in the First Amended Complaint. *See* First Amended Complaint, at ¶¶ 11-40. Plaintiff seemingly now contends these allegations render the First Amended Complaint sufficiently pleaded under C.R.C.P. 8(a). Yet, such an argument has no bearing on their redundancy, and further, pleading the same allegations repeatedly does not cure fatal defects when those allegations fail to present plausible grounds for relief, which is separately addressed in Ms. Fee's Motion to Dismiss First Amended Complaint. *See Warne v. Hall*, 373 P.3d 588, 595-596 (2016); *Bell Atlantic Corporation v. Twombly*, 550 U.S. 544 (2007); *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), and their progeny. This redundancy is sufficient basis to strike the allegations and exhibit portion at issue. *See* C.R.C.P. 12(f); *Koch v. Whitten*, 140 Colo. 109, 117 (Colo. 1959).

III. Basis exists here to strike impertinent or scandalous allegations where such allegations serve no other purpose other than to inflame prejudice.

Plaintiff contends the allegations and exhibit at issue do not contain any scandalous or scurrilous content. This argument fails. Plaintiff suggests to render the allegations and exhibit at issue impertinent or scandalous under C.R.C.P. 12(f), the Court must prematurely and improperly engage in an evidentiary admissibility determination. [*See* Response at 4-5]. This suggestion is misplaced. Ms. Fee does not cite to the California Penal Code § 632 (a), (c) for purposes of

¹ As Ms. Fee has contemporaneously filed a Motion to Dismiss Plaintiff's First Amended Complaint under C.R.C.P. 12(b)(5), Ms. Fee will continue to recite Plaintiff's allegations and characterizations in the light most favorable to Plaintiff for purposes of such motion practice. Nonetheless, these characterizations are, at best, redundant and, at worst, taken out of context, where, for instance, the quoted language in paragraph 49 of the First Amended Complaint has no apparent nexus to the ski patrol strike, and instead, pertains to Ms. Fee's explanation of how a public private partnership model could be applied for purposes of rebuilding one of Plaintiff's chairlifts. *See* Exhibit 2 of First Amended Complaint, at 36:6-40:10.

requesting an admissibility of evidence determination at this juncture, but rather, to show the allegations at issue are derived from disputed conduct. These circumstances distinguish this case from those cited in Plaintiff's Response. [Response at 3-4 (citing *Est. of Martin by & through Guerrero v. Adams Cnty., Colorado*, No. 1:24-CV-00855-SKC-KAS, 2024 WL 2783777, at *8-9 (D. Colo. May 30, 2024) and *Almont Ambulatory Surgery Ctr., LLC v. UnitedHealth Grp., Inc.*, No. CV 14-3053-MWF(VBKX), 2015 WL 12765483, at *3 (C.D. Cal. Feb. 12, 2015)]. The motions to strike in *Est. of Martin*, *supra*, and *Almont Ambulatory Surgery*, *supra*, did not include any argument the challenged allegations derived from disputed conduct of an opposing party, much less disputed conduct asserted to be unlawful. The motions to strike in those cases focused on the relevance of the challenged allegations, and the courts were unpersuaded to strike such allegations in light of a lack of showing of prejudice.

Conversely, here, where allegations are drawn from a clear violation of California law and serve no independent pleading function (because the allegations are redundant), their inclusion serves no legitimate purpose other than placing inflammatory allegations before the Court. If Plaintiff's position succeeds, the result is to allow parties to include inflammatory allegations in pleadings with no meaningful limitation, simply because admissibility might later be addressed. Such an approach defeats the purpose of C.R.C.P. 12(f), which exists to prevent pleadings from becoming repositories for unnecessary and prejudicial accusations. As such, paragraphs 41 through 52 and the transcript portion of Exhibit 2 should be stricken as calculated to cause harm to Ms. Fee. *See* C.R.C.P. 12(f); *Koch*, 140 Colo. at 118.

WHEREFORE, for the foregoing reasons, as well as the arguments and authorities contained in the Motion to Strike, Defendant Julie Meehan Fee respectfully requests this Court

strike paragraphs 41 through 52 of the First Amended Complaint and the transcript portion of Exhibit 2, and for all further relief as this Court deems just and appropriate.

Dated this 6th day of July, 2026.

Respectfully submitted,

Hall & Evans, L.L.C.

/s/ Kendra K. Smith

Kendra K. Smith, #51633

Andrew D. Ringel, #24762

Counsel for Defendant Julie Meehan Fee

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of July, 2026, a true and correct copy of the foregoing Reply in Support of Motion to Strike ¶¶ 41 through 52 and Transcript Portion of Exhibit 2 of First Amended Complaint Pursuant to C.R.C.P. 12(f) from Defendant Julie Meehan Fee was electronically filed with the Court and served upon all counsel of record via Colorado Courts E-Filing system.

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